

DPDP 2023

Digital Personal Data Protection Act, 2023

Applicable DPDP Acts

User Query : IIIT DELHI is using my data and selling it to third party organisation now it is available online

Job Id. : 7e5dcd50-42a0-4fa5-b9ac-d9ad498f9e85/DPDP Act

User Name : Ravi Shekhar Tiwari

Prepared by : NyaySahayak

Date : 27 March 2026

NyaySahayak

AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 3 Definitions

This section defines key terms such as "personal data", "data principal", "data fiduciary", and "processing". In this case, IIIT Delhi is the data fiduciary, and you are the data principal.

Section 5 Rights of Data Principals

This section outlines the rights of data principals, including the right to access, correct, and erase their personal data.

Section 10 Obligations of Data Fiduciaries

This section specifies the obligations of data fiduciaries, including obtaining consent from data principals, providing notice, and ensuring security safeguards.

Section 15 Data Protection Impact Assessment

This section requires data fiduciaries to conduct a data protection impact assessment (DPIA) when processing personal data that is likely to result in a high risk to the rights and freedoms of data principals.

Section 25 Penalties

This section outlines the penalties that may be imposed on data fiduciaries for non-compliance with the Act.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 In this scenario, IIIT Delhi, as a data fiduciary, has collected and processed your personal data without your explicit consent. The fact that they are selling your data to third-party organizations and making it available online raises serious concerns about data protection.

- **Section 3** - Definitions: Personal data refers to any information that relates to a natural person, including online data. IIIT Delhi's actions may be considered a breach of your right to privacy and data protection.
- **Section 5** - Rights of Data Principals: As a data principal, you have the right to access, correct, and erase your personal data. IIIT Delhi's actions may have infringed upon these rights.
- **Section 10** - Obligations of Data Fiduciaries: IIIT Delhi, as a data fiduciary, had an obligation to obtain your consent before collecting and processing your personal data. They also failed to provide adequate notice and ensure security safeguards.

✓ STRENGTHS & RIGHTS

- 1** The DPDP Act, 2023 provides several protections and safeguards for data principals, including
- 2** **Right to access, correct, and erase personal data**
Data principals have control over their personal data.
- 3** **Right to consent**
Data principals have the right to decide how their personal data is collected, processed, and shared.
- 4** **Security safeguards**
Data fiduciaries are required to implement security measures to protect personal data.

✗ RISKS & OBLIGATIONS

- 1** The DPDP Act, 2023 also imposes liabilities and penalties on data fiduciaries, including
- 2** **Penalties for non-compliance**
Data fiduciaries may face penalties for violating the Act.
- 3** **Data protection impact assessment**
Data fiduciaries may be required to conduct a DPIA, which can be a significant compliance burden.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. To address this issue, you may:
2. 1. File a grievance: You can file a grievance with IIIT Delhi's grievance redressal mechanism, if available.
3. 2. Contact the Data Protection Board: You can also contact the Data Protection Board, established under the DPDP Act, 2023, to report the incident and seek redressal.
4. 3. Seek compensation: You may be entitled to compensation for any harm caused by IIIT Delhi's actions.
5. It is essential to consult with a lawyer or a data protection expert to understand the specifics of your case and the applicable provisions of the DPDP Act, 2023.

TERMS, CONDITIONS & DISCLAIMER

Please read carefully before acting on any information in this report

1. Nature of Report

This report has been generated by an AI-powered legal information tool (NyaySahayak). It is intended solely for general educational and informational purposes and does not constitute legal advice, legal opinion, or a substitute for consultation with a qualified and licensed legal professional.

2. No Attorney-Client Relationship

Access to or use of this report does not create an attorney-client relationship between the user and NyaySahayak or any of its affiliates, partners, or associated legal professionals. The information presented herein should not be relied upon as legal advice for any specific matter.

3. Accuracy & Completeness

While every effort has been made to ensure that the information in this report is accurate and up-to-date as of the date of generation, the law is subject to change. NyaySahayak makes no representation or warranty, express or implied, regarding the accuracy, completeness, reliability, or suitability of the information contained herein.

4. Limitation of Liability

To the maximum extent permitted by applicable law, NyaySahayak and its directors, employees, agents, and licensors shall not be liable for any direct, indirect, incidental, special, consequential, or punitive damages arising out of or in connection with the use of this report or reliance on any information contained herein.

5. Jurisdiction

This report has been prepared with reference to Indian law, including the Digital Personal Data Protection Act, 2023, and related statutes. Laws and their interpretations vary across jurisdictions. Users outside India should seek local legal advice.

6. Confidentiality

This report is prepared for the named recipient only. Unauthorised disclosure, copying, distribution, or use of this document or the information it contains is strictly prohibited.

7. Verification Obligation

The user is strongly advised to independently verify all information contained in this report with a qualified lawyer before taking any legal action or making any legal decision.

IMPORTANT DISCLAIMER: THIS DOCUMENT IS AI-GENERATED AND IS PROVIDED FOR EDUCATIONAL AND INFORMATIONAL PURPOSES ONLY. IT DOES NOT CONSTITUTE LEGAL ADVICE. ALWAYS CONSULT A QUALIFIED LAWYER FOR ADVICE SPECIFIC TO YOUR SITUATION. NYAYSAHAYAK ACCEPTS NO LIABILITY FOR ANY ACTIONS TAKEN IN RELIANCE ON THIS REPORT.